BYLAWS OF
ADAMS INFINITE LEGACY

A California Nonprofit Public Benefit Corporation

DRAFT FOR REVIEW

To be reviewed by qualified California nonprofit counsel prior to adoption.

Adopted by the Board of Directors on: ______________________, 20____

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ARTICLE I
NAME, PURPOSES, AND OFFICES

Section 1. Name. The name of this corporation is Adams Infinite Legacy (the "Corporation").

Section 2. General Purpose. The Corporation is a nonprofit public benefit corporation and is not organized for the private gain of any person. It is organized under the California Nonprofit Public Benefit Corporation Law exclusively for charitable purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code of 1986, as amended (the "Code"), or the corresponding provision of any future federal tax law.

Section 3. Specific Purpose. The specific purpose of the Corporation is to provide direct financial assistance by funding medical, treatment, and related expenses for individuals who are experiencing, or surviving, chronic illness, and to engage in charitable, educational, and community health activities that further that mission, including public wellness programming and community health education.

Section 4. Principal Office. The principal office of the Corporation for the transaction of its activities is located in the State of California. The Board of Directors (the "Board") may change the location of the principal office. Any such change shall be noted by the Secretary in these Bylaws or shall be recorded in the minutes of the Board.

Section 5. Other Offices. The Corporation may establish offices at any place or places where it is qualified to conduct its activities, as the Board may from time to time determine.

ARTICLE II
TAX-EXEMPT STATUS AND LIMITATIONS

Section 1. Nonprofit Operation. The Corporation shall be operated exclusively for charitable purposes. Notwithstanding any other provision of these Bylaws, the Corporation shall not carry on any activity not permitted to be carried on (a) by a corporation exempt from federal income tax under Section 501(c)(3) of the Code, or (b) by a corporation, contributions to which are deductible under Section 170(c)(2) of the Code.

Section 2. Prohibition Against Private Inurement. No part of the net earnings, properties, or assets of the Corporation shall inure to the benefit of, or be distributable to, any director, officer, member, founder, employee, or other private person, except that the Corporation is authorized and empowered to pay reasonable compensation for services actually rendered and to reimburse reasonable expenses, and to make payments and distributions in furtherance of its charitable purposes.

Section 3. Legislative and Political Activities. No substantial part of the activities of the Corporation shall consist of carrying on propaganda, or otherwise attempting to influence legislation, except as permitted under Section 501(c)(3) and the applicable Treasury Regulations. The Corporation shall not participate or intervene in (including the publishing or distributing of statements) any political campaign on behalf of, or in opposition to, any candidate for public office.

Section 4. Private Foundation Provisions. In the event the Corporation is at any time a "private foundation" within the meaning of Section 509(a) of the Code, then during such period the Corporation shall distribute its income for each taxable year at such time and in such manner as not to become subject to the tax on undistributed income under Section 4942; shall not engage in any act of self-dealing under Section 4941(d); shall not retain any excess business holdings under Section 4943(c); shall not make any investments in a manner subject to tax under Section 4944; and shall not make any taxable expenditures under Section 4945(d).

ARTICLE III
DEDICATION OF ASSETS

The properties and assets of the Corporation are irrevocably dedicated to charitable purposes. No part of the net earnings, properties, or assets of the Corporation, on dissolution or otherwise, shall inure to the benefit of any private person or individual, or to any director or officer of the Corporation. On liquidation or dissolution, all remaining properties and assets of the Corporation, after payment or provision for payment of all debts and liabilities, shall be distributed as provided in Article XVII (Dissolution).

ARTICLE IV
MEMBERS

Section 1. No Statutory Members. The Corporation shall have no voting members within the meaning of Section 5056 of the California Corporations Code. Any action that would otherwise, under California law, require approval by a majority of all members or approval by the members shall require only the approval of the Board. All rights that would otherwise vest in the members vest in the Board of Directors.

Section 2. Non-Voting Affiliates and Supporters. The Board may, in its discretion, admit and designate one or more classes of donors, volunteers, program participants, honorary members, or other supporters (collectively, "Affiliates"). Affiliates are not members within the meaning of the California Corporations Code and have no voting rights, no right to notice, and no other statutory member rights. The Board may prescribe qualifications, dues, privileges, and obligations of Affiliates, and may terminate any such designation at any time.

[Drafting note: The original draft stated the organization "shall have voting members." Statutory voting members (Corp. Code §5056) hold significant legal rights — to elect and remove directors, approve major transactions, inspect records, and bring derivative lawsuits. This draft instead uses a self-perpetuating (board-only) structure, which is the most common choice for founder-led charities because it keeps governance and control with the Board and reduces the risk of member challenges. If you specifically want voting members, this Article and Article V (election of directors) must be rewritten — discuss with counsel before deciding.]

ARTICLE V
BOARD OF DIRECTORS

Section 1. Powers. Subject to the provisions and limitations of the California Nonprofit Public Benefit Corporation Law, any other applicable laws, the Articles of Incorporation, and these Bylaws, the activities and affairs of the Corporation shall be managed, and all corporate powers shall be exercised, by or under the direction of the Board.

Section 2. Number of Directors. The authorized number of directors shall be seven (7), or such other number, not fewer than three (3), as may be fixed from time to time by resolution of the Board. Until changed, the authorized number is seven (7).

[Drafting note: The board is now seven (7) directors — an odd number, which avoids the 3–3 deadlock that an even-numbered board risks. Keep in mind that the IRS looks for at least three directors who are not related to one another (by blood, marriage, or business) when reviewing a 501(c)(3) application; review the family and business relationships among your directors against that expectation.]

Section 3. Qualifications. Directors shall be natural persons of at least eighteen (18) years of age. Directors need not be residents of California. The Board may establish additional reasonable qualifications consistent with law.

Section 4. Limitation on Interested Persons. Not more than forty-nine percent (49%) of the persons serving on the Board at any time may be "interested persons." An interested person is (a) any person currently being compensated by the Corporation for services rendered to it within the previous twelve (12) months, whether as a full-time or part-time employee, independent contractor, or otherwise, excluding any reasonable compensation paid to a director as director; and (b) any brother, sister, ancestor, descendant, spouse, brother-in-law, sister-in-law, son-in-law, daughter-in-law, mother-in-law, or father-in-law of any such person. This limitation implements Section 5227 of the California Corporations Code.

Section 5. Term of Office. Each director shall hold office for a term of three (3) years and until a successor is elected or appointed and qualified, unless the director sooner resigns, is removed, or otherwise ceases to hold office. Directors may serve any number of consecutive terms. The Board may, by resolution, stagger the terms of directors so that approximately one-third of the terms expire each year to provide continuity.

Section 6. Election and Appointment. Because the Corporation has no voting members, directors shall be elected or appointed by the vote of a majority of the directors then in office, whether or not constituting a quorum, or by the sole remaining director, at the annual meeting or at any regular or special meeting. Directors shall be selected on the basis of their commitment to and ability to advance the charitable purposes of the Corporation.

Section 7. Vacancies. A vacancy on the Board shall be deemed to exist on the occurrence of the following: the death, resignation, or removal of any director; a declaration of vacancy by the Board pursuant to law (including where a director has been declared of unsound mind by a final court order, convicted of a felony, or found by a final court order to have breached a duty under Sections 5230 through 5239 of the California Corporations Code); or an increase in the authorized number of directors. Except as otherwise provided by law, vacancies may be filled by approval of the Board or, if the number of directors then in office is less than a quorum, by the affirmative vote of a majority of the directors then in office, or by the sole remaining director. A director elected to fill a vacancy shall serve for the unexpired term of the predecessor and until a successor is elected and qualified.

Section 8. Resignation. Except as provided below, any director may resign by giving written notice to the President, the Secretary, or the Board. The resignation shall be effective thirty (30) days after delivery of the notice, or at any later time specified in the notice, unless the Board accepts an earlier effective date. No director may resign where the Corporation would then be left without a duly elected director in charge of its affairs, except upon notice to the California Attorney General.

Section 9. Removal. Any director may be removed, with or without cause, by the affirmative vote of a majority of the directors then in office at a meeting for which notice of the proposed removal has been given, provided that any such removal shall be consistent with the limitation on interested persons in Section 4 of this Article. In addition, the Board may declare vacant the office of any director on the grounds set forth in Section 7 above and as otherwise permitted by Sections 5221 and 5222 of the California Corporations Code.

Section 10. Compensation of Directors. Directors shall serve without compensation for their services as directors. Directors may be reimbursed for reasonable and documented expenses actually incurred in carrying out their duties. Nothing in this Section prevents a director from being paid reasonable compensation for services rendered to the Corporation in a capacity other than as director, subject to the conflict-of-interest and interested-persons limitations of these Bylaws and applicable law.

Section 11. Standard of Care. A director shall perform the duties of a director, including duties as a member of any committee of the Board on which the director may serve, in good faith, in a manner the director believes to be in the best interests of the Corporation, and with such care, including reasonable inquiry, as an ordinarily prudent person in a like position would use under similar circumstances. In performing the duties of a director, a director is entitled to rely on information, opinions, reports, or statements, including financial statements and other financial data, prepared or presented by officers or employees of the Corporation whom the director believes to be reliable and competent, by legal counsel, independent accountants, or other persons as to matters the director believes to be within that person's professional competence, or by a committee of the Board on which the director does not serve, so long as the director acts in good faith, after reasonable inquiry when the need is indicated by the circumstances, and without knowledge that would cause such reliance to be unwarranted. A person who performs the duties of a director in accordance with this Section shall have no liability based upon any alleged failure to discharge the person's obligations as a director. This Section implements Section 5231 of the California Corporations Code.

Section 12. Non-Liability of Directors. No director shall be personally liable for the debts, liabilities, or other obligations of the Corporation.

ARTICLE VI
MEETINGS OF THE BOARD

Section 1. Place of Meetings. Meetings of the Board shall be held at the principal office of the Corporation or at any other place designated by resolution of the Board or in the notice of the meeting. Any meeting may be held by conference telephone, electronic video screen communication, or other electronic transmission or communications equipment, as provided in Section 8 of this Article.

Section 2. Regular Meetings. Regular meetings of the Board shall be held on the second Tuesday of every third month (that is, quarterly) at 7:00 p.m. Pacific Time, unless otherwise fixed by resolution of the Board. If a regular meeting date falls on a legal holiday, the meeting shall be held at the same time on the next business day. Regular meetings may be held without call or notice.

Section 3. Annual Meeting. One regular meeting each year, designated by the Board, shall be the annual meeting of the Board for the purpose of electing directors and officers, reviewing reports of the affairs of the Corporation, and transacting other business.

Section 4. Special Meetings. Special meetings of the Board may be called at any time by the President, the Vice Chair, the Secretary, or any two (2) directors.

Section 5. Notice of Special Meetings. Notice of the time and place of special meetings shall be given to each director by one of the following methods: (a) personal delivery, electronic mail, text message, or telephone, at least forty-eight (48) hours before the meeting; or (b) first-class mail, postage prepaid, at least four (4) days before the meeting. The notice need not specify the purpose of the meeting.

Section 6. Quorum. A majority of the authorized number of directors then in office shall constitute a quorum for the transaction of business, except to adjourn as provided in Section 10. Every act done or decision made by a majority of the directors present at a meeting duly held at which a quorum is present is the act of the Board, unless a greater number, or the same number after disqualifying one or more directors from voting, is required by law, the Articles, or these Bylaws. A meeting at which a quorum is initially present may continue to transact business notwithstanding the withdrawal of directors, if any action taken is approved by at least a majority of the required quorum for that meeting.

Section 7. Waiver of Notice. Notice of a meeting need not be given to any director who, either before or after the meeting, signs a waiver of notice, a written consent to holding the meeting, or an approval of the minutes, or who attends the meeting without protesting the lack of notice prior to or at the beginning of the meeting. All such waivers, consents, and approvals shall be filed with the corporate records or made a part of the minutes.

Section 8. Meetings by Electronic or Telephonic Means. Directors may participate in a meeting through use of conference telephone, electronic video screen communication, or other electronic transmission or electronic communications equipment, so long as all directors participating can concurrently hear one another (or, in the case of electronic transmission or electronic video communication, communicate with each other) and each director is provided the means of participating in all matters before the Board. Participation in a meeting in this manner constitutes presence in person at the meeting.

Section 9. Action Without a Meeting. Any action required or permitted to be taken by the Board may be taken without a meeting if all directors then in office, individually or collectively, consent in writing (including by electronic transmission) to that action. Such written consents shall be filed with the minutes of the proceedings of the Board. The action by written consent has the same force and effect as a unanimous vote of the directors.

Section 10. Adjournment. A majority of the directors present, whether or not a quorum is present, may adjourn any meeting to another time and place. Notice of the time and place of holding an adjourned meeting need not be given unless the meeting is adjourned for more than twenty-four (24) hours, in which case notice shall be given to the directors who were not present at the time of the adjournment.

ARTICLE VII
OFFICERS

Section 1. Officers. The officers of the Corporation shall be a President, a Vice Chair, a Secretary, a Treasurer (who shall be the chief financial officer), and a Chief Information Officer. The Corporation may also have, at the discretion of the Board, one or more program officers, including a Community Health Education Chair and a Philanthropy Chair, and such other officers as the Board may appoint. Any number of offices may be held by the same person, except that neither the Secretary nor the Treasurer may serve concurrently as the President.

Section 2. Election and Term. The officers of the Corporation shall be chosen annually by, and shall serve at the pleasure of, the Board. Each officer shall hold office until a successor is elected and qualified, or until the officer resigns, is removed, or is otherwise disqualified from serving.

Section 3. Removal and Resignation. Any officer may be removed, with or without cause, by the Board at any time. Any officer may resign at any time by giving written notice to the Board, the President, or the Secretary. Any resignation takes effect on the date of receipt of the notice or at any later time specified in the notice, and, unless otherwise specified, its acceptance is not necessary to make it effective. Removal or resignation as an officer does not, by itself, remove the person as a director.

Section 4. Vacancies. A vacancy in any office because of death, resignation, removal, disqualification, or any other cause shall be filled by the Board for the unexpired portion of the term.

Section 5. President. The President is the chief executive officer of the Corporation and, subject to the control of the Board, shall generally supervise, direct, and control the activities and affairs of the Corporation. The President shall preside at meetings of the Board and shall have such other powers and duties as the Board may prescribe. Unless another person is specifically authorized by the Board, the President (or the President's designee) may sign contracts, deeds, and other instruments on behalf of the Corporation.

Section 6. Vice Chair. In the absence or disability of the President, the Vice Chair shall perform all the duties of the President, and when so acting shall have all the powers of, and be subject to all the restrictions upon, the President. The Vice Chair shall have such other powers and duties as the Board or the President may prescribe.

Section 7. Secretary. The Secretary shall keep or cause to be kept a book of minutes of all meetings and actions of the Board and committees of the Board, and shall keep, or cause to be kept, at the principal office the Articles of Incorporation, these Bylaws, and a record of directors. The Secretary shall give, or cause to be given, notice of meetings as required, shall be custodian of the corporate records and seal (if any), and shall have such other powers and duties as the Board or the President may prescribe.

Section 8. Treasurer. The Treasurer is the chief financial officer of the Corporation and shall keep and maintain, or cause to be kept and maintained, adequate and correct books and records of accounts of the properties and business transactions of the Corporation. The Treasurer shall deposit corporate funds in the name and to the credit of the Corporation with such depositories as the Board designates; shall disburse the funds of the Corporation as ordered by the Board; shall render to the President and the Board, on request, an account of the financial condition of the Corporation; and shall have such other powers and duties as the Board or the President may prescribe. The Board may require the Treasurer to furnish a bond, at the Corporation's expense.

Section 9. Chief Information Officer. The Chief Information Officer shall, subject to the direction of the President and the Board, oversee the Corporation's information technology, information systems, and digital operations; develop and recommend the Corporation's technology strategy; and establish and maintain the Corporation's information-governance, data-privacy, records-security, and cybersecurity practices. The Chief Information Officer shall oversee the safeguarding of the Corporation's confidential, donor, and beneficiary information, support the document-retention and whistleblower policies described in Article XIV, and promote the Corporation's compliance with applicable data-protection and recordkeeping requirements. The Chief Information Officer shall have such other powers and duties as the Board or the President may prescribe. The Chief Information Officer need not be a director; when serving as a director, the Chief Information Officer has the full rights, powers, and duties of a director.

Section 10. Program Chairs. The Community Health Education Chair shall lead the Corporation's community health education and wellness-programming initiatives, and the Philanthropy Chair shall lead the Corporation's fundraising, donor-relations, and grantmaking coordination, each subject to the direction of the Board and consistent with the Corporation's policies. Program chairs need not be directors; when they are not directors, they serve in an advisory capacity without the authority of the Board.

ARTICLE VIII
COMMITTEES

Section 1. Committees of the Board. The Board may, by resolution adopted by a majority of the directors then in office, create one or more committees of the Board, each consisting of two (2) or more directors, to serve at the pleasure of the Board. Appointments to committees of the Board shall be by a majority vote of the directors then in office. To the extent provided in the resolution of the Board or in these Bylaws, a committee of the Board shall have the authority of the Board, except that no committee may: (a) fill vacancies on the Board or on any committee; (b) amend or repeal these Bylaws or adopt new bylaws; (c) amend or repeal any resolution of the Board that by its express terms is not so amendable or repealable; (d) create any other committee of the Board or appoint its members; (e) expend corporate funds to support a nominee for director; or (f) approve any transaction to which the Corporation is a party and in which one or more directors has a material financial interest, except as expressly permitted by law.

Section 2. Advisory Committees. The Board or the President may create advisory committees, task forces, or councils that may include persons who are not directors. Advisory committees do not have and may not exercise the authority of the Board and serve in an advisory capacity only.

Section 3. Audit Committee. If and when the Corporation is required by law to obtain an independent audit (see Article XII, Section 4), the Board shall appoint an audit committee. Members of the audit committee may include directors and non-director volunteers, but may not include the President or Treasurer, any employee of the Corporation, or any person with a material financial interest in any entity doing business with the Corporation. If the Corporation has a finance committee, members of the finance committee shall constitute less than one-half of the membership of the audit committee, and the chair of the finance committee shall not serve on the audit committee. The audit committee shall recommend retention and termination of the independent auditor and oversee the audit.

Section 4. Meetings and Action of Committees. Meetings and actions of committees shall be governed by, held, and taken in accordance with the provisions of these Bylaws concerning meetings and actions of the Board, with such changes in the context as are necessary to substitute the committee and its members for the Board and its members. The Board may adopt rules for the governance of any committee not inconsistent with these Bylaws.

ARTICLE IX
CONFLICTS OF INTEREST, SELF-DEALING, AND COMPENSATION

Section 1. Purpose. The purpose of this Article is to protect the Corporation's tax-exempt interests, and to protect its directors and officers, when the Corporation is contemplating entering into a transaction or arrangement that might benefit the private interest of a director, officer, or other insider, or that might result in an excess-benefit transaction or private inurement. This Article supplements, and does not replace, any applicable state and federal laws governing conflicts of interest applicable to nonprofit and charitable organizations.

Section 2. Duty to Disclose. In connection with any actual or possible conflict of interest, an interested person must disclose the existence of the financial interest and all material facts to the directors and members of committees with governing-board-delegated powers considering the proposed transaction or arrangement.

Section 3. Recusal and Determination Procedure. After disclosure of the financial interest and all material facts, and after any discussion with the interested person, the interested person shall leave the meeting while the transaction or arrangement is discussed and voted upon. The remaining board or committee members shall decide whether the transaction or arrangement is in the Corporation's best interest, is fair and reasonable, and whether a more advantageous transaction or arrangement is reasonably attainable with reasonable efforts under the circumstances. The Corporation shall approve the transaction only if a majority of the disinterested directors determines it to be in the Corporation's best interest and for its own benefit, that it is fair and reasonable, and that, after reasonable investigation, the Board determined the Corporation could not have obtained a more advantageous arrangement with reasonable effort under the circumstances. The minutes shall record the disclosure, the recusal, the alternatives considered, and the basis for the decision.

Section 4. Self-Dealing Transactions. The Corporation shall not engage in any self-dealing transaction, as defined in Section 5233 of the California Corporations Code, except as approved in accordance with that Section. A self-dealing transaction is a transaction to which the Corporation is a party and in which one or more of its directors has a material financial interest, subject to the exceptions set forth in Section 5233.

Section 5. Compensation and the Rebuttable Presumption of Reasonableness. Any compensation paid to a director, officer, or other "disqualified person" (within the meaning of Section 4958 of the Code), and any other transaction with such a person, shall be approved in advance by the Board or an authorized committee composed entirely of individuals who have no conflict of interest with respect to the arrangement; shall be based on appropriate comparability data obtained and relied upon before the determination; and shall be adequately and contemporaneously documented in the minutes, including the terms approved, the date, the persons present and voting, the comparability data relied upon, and the basis for the determination. The interested person shall not be present during the deliberation or vote on his or her own compensation. This procedure is intended to satisfy the requirements for the rebuttable presumption of reasonableness under Section 4958 and the applicable Treasury Regulations, and to protect the Corporation and its insiders from intermediate sanctions.

Section 6. Prohibition on Loans. The Corporation shall not make any loan of money or property to, or guarantee the obligation of, any director or officer, except as permitted by Section 5236 of the California Corporations Code. This Section does not apply to the advancement of expenses permitted under Article X or to reasonable advances for anticipated expenses in the ordinary course of the Corporation's activities.

Section 7. Annual Disclosure Statements. Each director and officer shall annually sign a statement that affirms that the person has received a copy of this conflict-of-interest policy, has read and understands it, has agreed to comply with it, and understands that the Corporation is charitable and, to maintain its federal tax exemption, must engage primarily in activities that accomplish its exempt purposes. Each such person shall disclose in that statement any known financial interests that could give rise to a conflict.

ARTICLE X
INDEMNIFICATION AND INSURANCE

Section 1. Right to Indemnification. To the fullest extent permitted by Section 5238 of the California Corporations Code and any other applicable law, the Corporation shall indemnify each of its "agents" (as defined in Section 5238, including its directors, officers, employees, and other agents) against expenses, judgments, fines, settlements, and other amounts actually and reasonably incurred in connection with any "proceeding" (as defined in Section 5238) arising by reason of the fact that the person is or was an agent of the Corporation. "Expenses" includes, without limitation, attorneys' fees and any expenses of establishing a right to indemnification under this Article.

Section 2. Advancement of Expenses. To the fullest extent permitted by law and except as otherwise determined by the Board in a specific instance, expenses incurred by an agent in defending any proceeding covered by this Article shall be advanced by the Corporation before final disposition of the proceeding, upon receipt by the Corporation of an undertaking by or on behalf of the agent to repay the amount advanced unless it is ultimately determined that the agent is entitled to be indemnified.

Section 3. Approval of Indemnification. On written request to the Board in a specific case, the Corporation shall determine whether the applicable standard of conduct set forth in Section 5238 has been met and, if so, shall authorize indemnification to the extent permitted by that Section. Any determination shall be made in the manner required by Section 5238, including, where required, by a majority vote of a quorum of directors who are not parties to the proceeding, by the court, or as otherwise permitted by law.

Section 4. Insurance. The Corporation shall have the power to purchase and maintain insurance to the fullest extent permitted by law on behalf of its directors, officers, employees, and other agents, against any liability asserted against or incurred by such person in that capacity or arising out of that person's status as such, whether or not the Corporation would have the power to indemnify the person against that liability under this Article. The Board shall use reasonable efforts to obtain and maintain directors' and officers' (D&O) liability insurance in amounts the Board determines to be reasonable and prudent.

[Drafting note: Directors' and officers' (D&O) liability insurance is the single most important practical protection for the President and the Board. It also matters legally: the volunteer-immunity protections in Article XI generally require that the Corporation maintain (or make a good-faith effort to maintain) D&O coverage. Budgeting for this coverage should be treated as a governance priority, not an optional expense.]

Section 5. Non-Exclusivity and Continuation. The indemnification provided by this Article is not exclusive of any other rights to which an agent may be entitled under any agreement, vote of the disinterested directors, or otherwise. The rights under this Article shall continue as to a person who has ceased to be an agent and shall inure to the benefit of the heirs, executors, and administrators of such person. No amendment or repeal of this Article shall adversely affect any right of an agent with respect to any act or omission occurring before the amendment or repeal.

Section 6. Limitations. No indemnification or advance shall be made under this Article, except as provided in Section 5238, in any circumstance where it appears that it would be inconsistent with a provision of the Articles, these Bylaws, or an agreement in effect at the time of the accrual of the alleged cause of action, or with any applicable condition expressly imposed by a court in approving a settlement.

ARTICLE XI
LIMITATION OF LIABILITY OF VOLUNTEER DIRECTORS AND OFFICERS

To the fullest extent permitted by Sections 5047.5 and 5239 of the California Corporations Code, no volunteer director or volunteer officer of the Corporation shall be liable for monetary damages caused by his or her negligent act or omission in the performance of that person's duties, provided that the damage was not caused by the person's willful or wanton misconduct, that the act or omission was performed within the scope of the person's duties, that the act or omission was performed in good faith, and that (where required by statute) the Corporation maintained a liability insurance policy applicable to the act or omission, or made a good-faith effort to obtain such coverage. This Article does not limit the liability of a director or officer for any act or omission not covered by the referenced statutes, and shall be applied consistent with the conditions and limitations set forth in those statutes.

ARTICLE XII
FINANCIAL ADMINISTRATION

Section 1. Fiscal Year. The fiscal year of the Corporation shall end on December 31 of each year, unless otherwise fixed by resolution of the Board.

Section 2. Books and Records of Account. The Corporation shall keep adequate and correct books and records of account and shall maintain its financial records in accordance with generally accepted accounting principles to the extent reasonably practicable for an organization of its size.

Section 3. Execution of Instruments; Checks and Deposits. The Board may authorize any officer, agent, or agents to enter into any contract or execute any instrument in the name of and on behalf of the Corporation, and such authority may be general or confined to specific instances. All funds of the Corporation shall be deposited to the credit of the Corporation in banks or other depositories designated by the Board. The Board shall establish written procedures governing the signing of checks, electronic transfers, and other disbursements, and may require two authorized signatures or approvals for disbursements exceeding an amount fixed by the Board.

Section 4. Independent Audit, Audit Committee, and Executive Compensation Review. If the Corporation is a charitable corporation required to register and report with the California Attorney General and accrues gross revenues of two million dollars ($2,000,000) or more in any fiscal year (excluding grant or contract income from governmental entities for which the entity requires an accounting), the Corporation shall: (a) obtain an annual financial audit of its financial statements by an independent certified public accountant, made available for inspection as required by law; (b) establish and maintain an audit committee as described in Article VIII, Section 3; and (c) have the Board, or an authorized committee, review and approve the compensation, including benefits, of the President (chief executive) and the Treasurer (chief financial officer) to assure that it is just and reasonable. This Section implements the California Nonprofit Integrity Act. Even below this threshold, the Board may commission an audit or independent financial review whenever it determines that doing so is prudent.

[Drafting note: The $2,000,000 audit threshold is current as of this drafting but is set by statute and can change; confirm the current figure before relying on it. The compensation-review requirement for the CEO and CFO also directly protects the President by creating a documented, disinterested approval record.]

Section 5. Annual Report to Directors. The Board shall cause an annual report to be furnished to all directors within 120 days after the close of the fiscal year, containing the information required by Section 6321 of the California Corporations Code, including a balance sheet, a statement of revenue and expenses, a statement of changes in financial position, and a statement of any self-dealing or indemnification transactions, to the extent required by that Section.

Section 6. Government Filings. The Corporation shall timely make all required filings, including annual filings with the Internal Revenue Service (Form 990 series), the California Franchise Tax Board, the California Secretary of State (Statement of Information), and the California Attorney General's Registry of Charities and Fundraisers (initial registration and annual renewal), and shall maintain its registrations in good standing.

ARTICLE XIII
CORPORATE RECORDS AND INSPECTION RIGHTS

Section 1. Maintenance of Corporate Records. The Corporation shall keep at its principal office the original or a copy of its Articles of Incorporation and Bylaws as amended to date; minutes of all meetings of the Board and committees of the Board; a record of each director's name, address, and term; and adequate and correct books and records of account.

Section 2. Directors' Inspection Rights. Every director has the absolute right at any reasonable time to inspect and copy all books, records, and documents of every kind, and to inspect the physical properties of the Corporation, and may make such inspection in person or by an agent or attorney. The right of inspection includes the right to copy and make extracts of documents.

Section 3. Public Disclosure. The Corporation shall make available for public inspection and copying, to the extent required by federal and state law, its application for tax exemption and its annual information returns.

ARTICLE XIV
REQUIRED GOVERNANCE POLICIES

Section 1. Conflict-of-Interest Policy. The Board shall maintain and periodically review the conflict-of-interest policy set forth in Article IX and shall obtain the annual disclosure statements described in that Article.

Section 2. Document Retention and Destruction Policy. The Board shall adopt and maintain a written document-retention and -destruction policy that identifies the record types the Corporation maintains and the retention periods for each, and that prohibits the destruction, alteration, or concealment of records relevant to any pending, threatened, or reasonably anticipated litigation, audit, or government investigation.

Section 3. Whistleblower Policy. The Board shall adopt and maintain a written whistleblower policy that encourages directors, officers, employees, and volunteers to report suspected violations of law or corporate policy, including questionable financial or accounting practices, and that prohibits retaliation against any person who in good faith makes such a report.

Section 4. Gift Acceptance and Grantmaking Policies. The Board may adopt written policies governing the acceptance of gifts and the making of grants and charitable assistance, including eligibility criteria, application and review procedures, documentation requirements, and nondiscrimination standards.

ARTICLE XV
PROGRAMS AND GRANTMAKING

Section 1. Charitable Programs. In furtherance of its purposes, the Corporation may operate charitable programs, including providing direct financial assistance for medical and related expenses to eligible individuals experiencing or surviving chronic illness, and conducting community health education and wellness programming.

Section 2. Get Well Soon Wellness Festival. The Corporation may host the “Get Well Soon” Wellness Festival, a community wellness event at which grant recipients may be recognized and announced. The Board may delegate planning and administration of the festival to a committee, to the Community Health Education Chair, or to the Philanthropy Chair, subject to the Corporation's policies and applicable law.

Section 3. Grant Standards and Nondiscrimination. All charitable assistance and grants shall be awarded solely in furtherance of the Corporation's exempt purposes, on a nondiscriminatory basis, using objective and documented criteria, and shall not confer any impermissible private benefit. No grant or assistance shall be made to or for the benefit of any director, officer, or disqualified person except in strict compliance with Article IX and applicable law.

ARTICLE XVI
AMENDMENTS

Because the Corporation has no voting members, these Bylaws may be adopted, amended, or repealed by the affirmative vote of a majority of the directors then in office at any regular or special meeting of the Board for which notice of the proposed action has been given, or by unanimous written consent of the Board. Notwithstanding the foregoing, any amendment that would materially and adversely affect the rights of any agent to indemnification under Article X with respect to acts or omissions occurring before the amendment shall not be effective as to such prior acts or omissions. Any amendment affecting the provisions required for the Corporation's tax-exempt status shall be consistent with Sections 501(c)(3) and 170(c)(2) of the Code and with the California Nonprofit Public Benefit Corporation Law, and, where required by law, no amendment shall be adopted without any approval required by the California Attorney General or a court.

ARTICLE XVII
DISSOLUTION

Section 1. Winding Up. The Corporation may be dissolved only as permitted by, and in accordance with, the California Nonprofit Public Benefit Corporation Law. On the dissolution or winding up of the Corporation, its assets remaining after payment of, or provision for payment of, all debts and liabilities of the Corporation shall be distributed to a nonprofit fund, foundation, or corporation that is organized and operated exclusively for charitable purposes and that has established its tax-exempt status under Section 501(c)(3) of the Code, or to the federal government, or to a state or local government, for a public purpose.

Section 2. Attorney General Oversight. Any distribution of assets on dissolution shall be made in accordance with a plan of distribution approved by the Board and, where required, with the approval or waiver of the California Attorney General or a court of competent jurisdiction. Assets shall not be distributed to any director, officer, member, or private person except as expressly permitted by law.

ARTICLE XVIII
GENERAL PROVISIONS

Section 1. Governing Law. These Bylaws shall be governed by, and construed in accordance with, the laws of the State of California. In the event of any conflict between these Bylaws and the Articles of Incorporation, the Articles shall control; in the event of any conflict between these Bylaws or the Articles and mandatory provisions of the California Nonprofit Public Benefit Corporation Law, the law shall control.

Section 2. Severability. If any provision of these Bylaws, or its application to any person or circumstance, is held to be invalid or unenforceable, the remainder of these Bylaws and the application of that provision to other persons or circumstances shall not be affected, and each remaining provision shall be valid and enforceable to the fullest extent permitted by law.

Section 3. Construction and Definitions. Unless the context requires otherwise, the general provisions, rules of construction, and definitions in the California Nonprofit Corporation Law and the California Nonprofit Public Benefit Corporation Law govern the construction of these Bylaws. Without limiting the foregoing, the masculine gender includes the feminine and neuter, the singular includes the plural, the plural includes the singular, and the term “person” includes both an entity and a natural person. Article and Section headings are for convenience only and do not affect interpretation.

Section 4. Founder Recognition. The Corporation recognizes Alitalia Adams as its Founder. The Founder is honored for establishing the Corporation and, so long as the Founder is willing and able to serve and remains qualified under these Bylaws and applicable law, the Board shall in good faith consider the Founder for continued service as a director and as President. This Section is a statement of recognition and does not create a guaranteed, permanent, or irrevocable right to any office or board seat, and does not override the election, removal, term, or interested-persons provisions of these Bylaws or applicable law.

[Drafting note: A guaranteed permanent board seat or officer position for a founder is generally discouraged: it can conflict with the Board's fiduciary duties and California law, and the IRS may view it as an indicator of impermissible private control. The strongest, most durable protection for the President comes from the indemnification, insurance, standard-of-care, and volunteer-immunity provisions in Articles V, X, and XI — not from entrenching control. This Section is drafted as recognition rather than entrenchment for that reason. Confirm the approach with counsel.]

Section 5. Nondiscrimination. The Corporation shall not discriminate against any person on the basis of any characteristic protected by applicable law in its programs, services, grantmaking, employment, volunteer opportunities, or governance.

Section 6. Execution and Electronic Signatures. Any consent, waiver, notice, or other document contemplated by these Bylaws may be delivered and signed by electronic means to the extent permitted by law, and an electronic signature has the same effect as a manual signature.

CERTIFICATE OF ADOPTION AND WRITTEN CONSENT

The undersigned constitute all of the directors and officers of Adams Infinite Legacy, a California nonprofit public benefit corporation (the “Corporation”). By signing below, each of the undersigned, in his or her capacity as a director and/or officer of the Corporation, adopts and approves the foregoing Bylaws (consisting of eighteen (18) Articles and Exhibit A) as the Bylaws of the Corporation and consents to their adoption. The Secretary of the Corporation further certifies that these Bylaws were duly adopted by the Board of Directors and are in full force and effect. These Bylaws are effective as of the date of the last signature affixed below.

1. President

Signature: {{President Signature;type=signature;role=President;required=true}}

Printed Name: Alitalia Adams Title: President and Founder

Date: {{President Date;type=date;role=President;required=true}}

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2. Vice Chair

Signature: {{Vice Chair Signature;type=signature;role=Vice Chair;required=true}}

Printed Name: Judy Adams Title: Vice Chair

Date: {{Vice Chair Date;type=date;role=Vice Chair;required=true}}

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3. Treasurer

Signature: {{Treasurer Signature;type=signature;role=Treasurer;required=true}}

Printed Name: Lee Taylor II Title: Treasurer (Chief Financial Officer)

Date: {{Treasurer Date;type=date;role=Treasurer;required=true}}

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4. Secretary

Signature: {{Secretary Signature;type=signature;role=Secretary;required=true}}

Printed Name: Courtney Woo Title: Secretary

Date: {{Secretary Date;type=date;role=Secretary;required=true}}

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5. Chief Information Officer

Signature: {{Chief Information Officer Signature;type=signature;role=Chief Information Officer;required=true}}

Printed Name: Charles Pleasant Title: Chief Information Officer

Date: {{Chief Information Officer Date;type=date;role=Chief Information Officer;required=true}}

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6. Community Health Education Chair

Signature: {{Community Health Education Chair Signature;type=signature;role=Community Health Education Chair;required=true}}

Printed Name: Joe Grumbine Title: Community Health Education Chair

Date: {{Community Health Education Chair Date;type=date;role=Community Health Education Chair;required=true}}

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7. Philanthropy Chair

Signature: {{Philanthropy Chair Signature;type=signature;role=Philanthropy Chair;required=true}}

Printed Name: Nancy Hughes Title: Philanthropy Chair

Date: {{Philanthropy Chair Date;type=date;role=Philanthropy Chair;required=true}}

EXHIBIT A
FOUNDING DIRECTORS AND OFFICERS

The following individuals constitute the founding directors and officers of the Corporation as of the date these Bylaws were adopted. This Exhibit is maintained by the Secretary and updated from time to time as directors and officers change; changes to this Exhibit do not constitute an amendment of the Bylaws.

Officers

- President and Founder: Alitalia Adams
- Vice Chair: Judy Adams
- Treasurer (Chief Financial Officer): Lee Taylor II
- Secretary: Courtney Woo
- Chief Information Officer: Charles Pleasant
- Community Health Education Chair: Joe Grumbine
- Philanthropy Chair: Nancy Hughes

Directors

The Board consists of seven (7) directors. The names of the current directors, including the Founder and President, shall be recorded here and maintained by the Secretary:

1. ________________________________ (Alitalia Adams, Founder & President)
2. ________________________________
3. ________________________________
4. ________________________________
5. ________________________________
6. ________________________________
7. ________________________________ (Charles Pleasant, Chief Information Officer)

IMPORTANT NOTICE

This document is a governance template prepared to strengthen and expand an earlier draft. It is not legal advice and no attorney-client relationship is created by it. Nonprofit governance is governed by California and federal law and by the Corporation's own Articles of Incorporation, and the requirements and dollar thresholds cited here can change. Before adoption, this document should be reviewed by qualified California nonprofit counsel and reconciled with the Corporation's Articles of Incorporation and IRS determination letter.